

# The Central Electricity Regulatory Commission (Form of Annual Statement of Accounts and Records) Rules, 2007

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The Central Electricity Regulatory Commission (Form of Annual Statement of Accounts and Records) Rules, 2007

UNION OF INDIA

India

The Central Electricity Regulatory Commission (Form of Annual Statement of Accounts and Records) Rules, 2007

Rule

THE-CENTRAL-ELECTRICITY-REGULATORY-COMMISSION-FORM-OF-ANNUAL-STATEMENT-OF-ACCOUNTS-AND-RECORDS-RULES-2007 of 2007

Published on 22 October 2007

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The Central Electricity Regulatory Commission (Form of Annual Statement of Accounts and Records) Rules, 2007

Published vide Notification No. G.S.R. 676(E), dated 22nd October, 2007

G.S.R. 676(E). - In exercise of the powers conferred by clause (n) of sub-section (2) of section 176 read with sub-section (1) of section 100 of the Electricity Act, 2003 (

No. 36 of 2003

) the Central Government, in consultation with the Comptroller and Auditor-General of India, hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Central Electricity Regulatory Commission (Form of Annual Statement of Accounts and Records) Rules, 2007.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules unless the context otherwise requires,-

(a)

'Act' means the Electricity Act, 2003 (36 of 2003

);

(b)

'Central Commission' means the Central Electricity Regulatory Commission constituted under section 76 of the Act;

(c)

'Audit Officer' means the Comptroller and Auditor-General of India or any person appointed by him in connection with the audit of accounts of the Commission;

(d)

'Secretary' means the Secretary of the Central Electricity Regulatory Commission;

(e)

'Schedule' means the schedule appended to these rules;

(f)

'Form' means a form appended to these rules.

(2)

Words and expressions used and not defined in these rules but defined in the Electricity Act, 2003 (36 of 2003

), shall have the meanings respectively assigned to them in that Act.

3.

Accounts of the Commission.

(1)

The Central Commission shall prepare the annual statement of accounts for every financial year commencing with 2004-05. The Secretary of the Central Commission may authorise an officer of the Central Commission to prepare the account on his behalf.

(2)

The Secretary of the Central Commission shall supervise the maintenance of the accounts of the Central Commission, the compilation of financial statement and return, and shall ensure that all accounts, books, connected vouchers and other documents and papers of the Central Commission required by the audit officer for the purpose of auditing the accounts of the Central Commission are placed at the disposal of that officer.

(3)

The annual statement of accounts duly approved by the Central Commission and after certification by the Comptroller and Auditor-General of India or his authorised representative, shall be submitted by the Secretary of the Central Commission to the, Central Government by such date as may be specified by the Central Government.

(4)

(i)

The Central Commission shall prepare the following accounts in the forms mentioned below:-

(a)

Receipt and Payment Accounts in Form A;

(b)

Income and Expenditure Accounts in Form B;

(c)

Balance Sheet in Form C.

(ii)

The authorised signatory to sign and authenticate the Receipt and Payment Accounts', 'Income and Expenditure Accounts' and 'Balance Sheet' shall be the Secretary of the Commission.

(iii)

The annual statement of accounts shall be submitted to the Audit Officer on or before the 30th June following the year to which the accounts relate and the Audit Officer shall audit the accounts of the Central Commission and report thereon.

(iv)

The Central Commission shall, on receipt of the audit report, correct any defect or irregularity pointed out therein and report to the Central Government and the Audit Officer about the action taken by it thereon.

Form - A

Receipt and Payment Accounts for the Period/year Ended \_\_\_\_\_

(Amount - Rs)

Receipts

Current Year

Previous Year

Payments

Current Year

Previous Year

1. To Opening Balances

(a) Cash in Hand(b)

Bank Balance

(i) In Current

Accounts(ii) In Deposit Accounts(iii) Saving Accounts

1.By Expenses

(a) Establishment

expenses

(i) Salaries

(Chairman & Members) of the Commission)(ii) Salaries

(Officers and establishment) (iii) Allowances and Bonus(iv)

Payment for professional and other services

(b) Travel Expenses

(i) Foreign

Travels(ii) Domestic Travels

(c) Overtime

Allowance(d) Medical and Health care facilities(e) Other establishment charges

(i) Tuition fees (ii)

LTC(iii) Any other (to be specified)

(f) Contribution to

Provident Fund(g) Contribution to Other Funds (to be specified)(h) Staff welfare expenses(i) Expenses on employees' retirement and terminal benefits

2.To Grants Received

(a) From Min of

Power(b) From State Government(c) From Other Sources

(Details) (Grants for Capital and Revenue Expenditure to be shown separately)

2.By Administrative expenses

(a) Purchases(b)

Labour and rocessing expenses(c) Cartage and Carriage

Inwards(d) Electricity & power(e) Water charges(f)

Insurance(g) Repair and maintenance(h) Excise Duty(l)

Rent, Rates and Taxes(j) Vehicles Running and Maintenance(k)

Postage, Telephone and Communication Charges(l) Printing and

Stationery(m) Travelling and Conveyance Expenses(n)

Expenses on Seminar/Workshops(o) Subscription Expenses(p)

Expenses on Fee(q) Auditors Remuneration/Legal Fee(r)

Hospitality Expenses(s) Professional Charges(t) Provision

for Bad and Doubtful Debts/Advances(u) Irrecoverable Balances

return off(v) Packing Charges(w) Freight and Forwarding

Expenses(x) Distribution Expenses(y) Advertisement and

Publicity(z) Others (to be specified)

3.To Income on Investments from

(a) Earmarked/Endow

Funds(a) Own Funds (Other investments)

3.By Investments and Deposits Made

(i) Investments(ii)

Deposits

(a) Security

Deposit(b) Earnest Money Deposit

4.To Receipts of the Commission

(a)Interest

Received

(i) On Bank

deposits(ii) On Loans, advances to employees etc.(iii)

Sale of Publications(iv) Sale of Newspapers(v) Fee

charged by the Commission(vi) Contributions of Medical,

Health care beneficiaries(vii) Miscellaneous receipts

(b) Investments

(i) To Face value of

investment(ii) To Interests on investment

4. (I)By Advances

to Staff

(a)

House Building Advance(b) Motor Car/Personal Computer

Advance(c) Scooter/Motor Cycle Advance(d) Other Advances

(to be specified)

(II)

By Contingent Advances

(a)

Advance to CPWD(b) Advance to Suppliers/Contractors(c)

Other Advances (to be specified)

(III)

By Other Adjustments/Remittances

(a) GPF/CPF etc.

recovered from the deputationists.(b) Licence fee(c)

Income Tax(d) Sales Tax(e) Central Govt. Health

Scheme(f) Postal Life Insurance(g) CGEGIS/CEEIS(h)

House building advances(i) Motor Car/Computer Advances(j)

Scooter/Motor Cycle Advances(k) Other recoveries (to be specified)

5. To Debt/Deposit Receipts

(a) Recovery of advance from staff

(i) House Building

advance(ii) Motor Car/personal computer advance(iii)

Scooter/Motor cycle advance(iv) Other advances (to be

specified)(v) Recoupment of GPF Advance paid to deputationists.

(b) Recovery of contingent advances

(i) Advances to

CPWD(ii) Advances to suppliers(iii) Other Advances (to be specified).

(c) Other Deposits

(i) Security

deposit(ii) Earnest Money deposit(iii) Any other deposit (to be specified)

5. By Contributions

(a) Pension and

Gratuity(b) Leave Salary & Pension Contributions(c)

Other Contribution (to be specified)

6.To Remittance Receipts

(a) Recovery from

deputationists(b) Licence Fee(c) Income Tax(d)

Surcharge(e) Sales Tax(f) Central Govt Health Scheme(g)

Postal Life Insurance(h) Central Govt Employees Group

Insurance Scheme(i) Any other (to be specified)

6.By Expenditure on Fixed Assets and Capital

Work-in-progress

(a) Land(b)

Buildings(c) Furniture & Equipment(d) Machinery &

Equipment(e) Motor Vehicles(f) Books &

Publications(g) Any other (to be specified)

7.By Closing Balances

(a) Cash in Hand(b)

Bank Balances

(i) In Current

Accounts(ii) In Deposit Accounts(iii) Savings Accounts

Total

Total

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

Form - B

Income and Expenditure Accounts

for the Period/year Ended \_\_\_\_\_

(Amount - Rs)

Income

Schedule

Current Year

Previous Year

1. By Grants/Subsidies

1.1 Ministry of Power1.2 Other

Sources (to be specified)

12

2. By Sales/Services

13

3. By Seminars and Conferences

4. By Consultancy

5. By Fees/Subscriptions/fines

5.1 Fee for Petitions5.2 Other

Charges5.3 Fines5.4 Any other (to be specified)

14

6. By Investment (Income on invest, from earmarked/endow funds transferred to funds).

15

7. By Royalty, Publications etc.

7.1 Royalty7.2 Publications

16

8. By Interest

8.1 Interest on Deposits (to be

specified)8.2 Interest on Loans and Advances8.3 Interest

on Investment8.4 Interest on Cash at Bank8.5 Any other

(to be specified)

17

9. By Other Income

9.1 Medical Health Care

facilities9.2 Sale of Newspapers9.3 Gifts9.4 Gains on

sale of assets9.5 Staff Car recoveries

18

10. By Increase/(Decrease) in stock of finished goods and Work

? in - Progress

19

11. By Excess of Expenditure over Income(transferred to

Capital fund account)

12 Total (A)

Expenditure

Schedule

Current Year

Previous Year

1. To Establishment Expenses

1.1 Pay & Allowances of

Chairperson & Members1.2 Pay & Allowances of officers

and establishments1.3 Pay & Allowances of Staff1.4

Honorarium1.5 Overtime Allowance1.6 Medical and Health

Care facilities1.7 Bonus1.8 Any Other Establishment

Charges (to be specified)

20

2. To Payment on Professional & Other Services

3. To Travel Expenses

3.1 Domestic Travels ?

Chairman, Members & Other Officers- Staff

3.2 Foreign Travels ? Chairman, Members & Other Officers- Staff

4. To Other Administrative Expenses, etc

4.1 Seminar and Conference

4.2 Telephone and Fax

4.3 Rent, Rate & Taxes

4.4 News Paper/Periodicals

4.5 Advertisement and Publicity

4.6 Postage and Telegram

4.7 Liveries

4.8 Water & Electricity

4.9 Any other (to be specified)

21

5. To Stationer & Printing

5.1 Stationery

5.2 Printing

6. To Publications

7. To Miscellaneous and Other Expenses

8. To Repair and Maintenance

8.1 Buildings

8.2 Machinery & Equipment

8.3 Furniture & Fixture

8.4 Vehicles

9. To Petrol & Lubricants

10. To Hospitality Expenses

11. To Audit Fees

12. To Legal Charges

13. To Provident Fund & Other Contributions

13.1 Pension & Gratuity (including Commuted Value of Pension)

13.2 Contribution to CPF

13.3 Deposit Linked Insurance Scheme

13.4 Pension Contribution

13.5 Leave Salary Contribution

13.6 Gratuity Contribution

14. To Interest

14.1 Interest on GPF

14.2 Interest on CPF

14.3 Any Other (to be specified)

15. To Group Insurance Scheme

15.1 CGESIS ?

Saving Fund- Insurance Fund

15.2 CGEIS ? Saving Fund- Insurance Fund

16. To Depreciation

17. To Loss on sale of Assets

18. To Bad-debts return of

19. To Excess of Income over Expenditure (Transferred to Capital Fund Account)

20. Total (B)

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

Form - C

Balance Sheet

for the Period/Year Ended \_\_\_\_\_

(Amount Rs.)

Corpus/Capital Fund and Liabilities

Schedule

Current Year

Previous Year

1. Corpus/Capital Fund

1

2. Add excess of Income over Expenditure/Less excess of Expenditure over Income

2

3. Other Funds

3.1 Provident Funds 3.2 Others

(to be specified)

4. Reserves and Surplus

5. Earmarked/Endowment Funds

3

6. Secured Loans and Borrowings

6.1 From government 6.2 From

Others

4

7. Unsecured Loans and Borrowings

5

8. Deferred Credit Liabilities

6

9. Current Liabilities and Provisions

7

Total

Assets

1. Fixed Assets

8

2. Investments ? From Earmarked/Endowment Funds of CERC

9

3. Capital Work-in-Progress

4. Advances

4.1 Festival Advance. 4.2 Other

Advance (to be specified)

13

5. Deposits

5.1 Security Deposits 5.2

Petrol Account 5.3 Telephone Account 5.4 Any other (to be specified)

14

6. Loans and Advances

15

7. Gifts and Donations

16

8. Sundry Debtors

17

9. Payment Made to CPWD for Works

18

10. Cash and Bank Balance

10.1 Cash at Bank 10.2 Cash in

Hand 103. Imprest

19



11. Other Current Assets

20

Total

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

Forming Part of Balance Sheet as at \_\_\_\_\_

1 Corpus, Capital Fund

Balance as at the beginning of the year

Current Year

Previous Year

Add: Contributions towards Corpus/Capital Fund

Add/(Deduct): Balance of net income/(expenditure) transferred  
from the Income and Expenditure Account

Balance as at the Year - End

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

2 : Add excess of Income over Expenditure/Less excess of Expenditure over Income

Current Year

Previous Year

1.Capital Reserve

As per last

AccountAddition during the yearLess: Deductions during  
the Year

2.Revaluation Reserve

As per last

AccountAddition during the yearLess: Deductions during  
the Year

3.Special Reserves

As per last

AccountAddition during the yearLess: Deductions during  
the Year

4.General Reserve

As per last

AccountAddition during the yearLess: Deductions during  
the Year

Total

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

3 : Earmarked/Endowment Funds

Fund WW

Fund XX

Fund YY

Fund ZZ

Current Year

Previous Year

a) Opening balance of the funds

b) Additions to the

Funds:

(i)

Donations/grants

(ii)

Income from investments made on account of funds

(iii) Other additions

(specify nature)

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?.....

Total (a+b)

?.....

?.....

?.....

?.....

?.....

?.....

c) Utilisation/Expenditure towards objectives of Funds

(i) Central

Expenditure

-

Fixed Assets- Others

Total

(ii) Revenue Expenditure

-

Salaries, Wages and allowances etc.

-

Rent

-

Other Administrative Expenses

Total

Total (c)

Net Balance as at the Year -End (a+b-c)

Notes 1) Disclosures shall be made under relevant heads based on conditions attaching to the grants.

2.

) Plan Funds received from the Central/State Governments are to be shown as separate Funds and not to be mixed up with any other Funds.

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

4 : Secured Loans Borrowings

(Amount Rs.)

Current Year

Previous Year

1. Central Government

2. State Government (Specify)

3. Financial

Institutions

a)

Terms Loans

b) Interest accrued

and due

4. Banks

a)

Term Loans

-

Interest accrued and due

c)

Other Loans (specify)

- Interest accrued

and due

5

Other Institutions and Agencies

6. Debentures and loan

7. Others (Specify)

Total

Note: Amounts due within one year

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

5 : Unsecured Loans and Borrowings

Current Year

Previous Year

1. Central Government

2. State Government

3. Financial Institutions

4. Banks:

a) Term Loans

b) Other Loans (specify)

5. Other Institutions and Agencies

6. Debentures and Bonds

7. Fixed Deposits

8. Others (specify)

Total

Note: Amounts due within one year.

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

6 : Deferred Credit Liabilities

Current Year

Previous Year

a) Acceptances secured by hypothecation of capital equipment  
and other assets

b) Others

Total

Note: Amounts due within one year.

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

7 : Current Liabilities and Provisions

Current Year

Previous Year

A. Current Liabilities

1. Acceptances

2. Sundry Creditors:-

(a) For Goods

(b) Others

3. Advances Received

4. Interest accrued but not due on:

(a) Secured

Loans/borrowings

(b) Unsecured

Loans/borrowings

5. Statutory Liabilities:

(a) Overdue

(b) Others

6. Other current Liabilities

Total (A)

B. Provisions

1. For Taxation

2. Gratuity

3. Superannuation/Pension

4. Accumulated Leave Encashment

5. Trade Warranties/Claims

6. Others (Specify)

Total(B)

Total(A+B)

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

8 : Fixed Assets

(Amount Rs.)

Sl. No.

Description

Balance as at the beginning of the Year (Rs.)

Add: Contributions

towards Corpus/Capital Fund (Rs)

Add (Deduct): Balance of the Net

Income/(Expenditure) transferred from Income and Expenditure  
Account (Rs)

Balance as at the Year - End (Rs)

Previous Year

Current Year

Previous Year

Current Year

Previous Year

Current Year

Previous Year

Current Year

1

Land

2

Building (Renovation)

3

Furniture & Fixtures

4

Machinery & Equipment

5

Motor Vehicles

6

Books & Publications

7

Gifted/Donated Assets

8

Other (to be specified)

Total

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

9 : Investments From Earmarked/Endowment Funds

(Amount - Rs.)

Current Year

Previous Year

1. In Government Securities

2. Other approved Securities

3. Shares

4. Debentures and Bonds

5. Subsidiaries and Joint Ventures

6. Others (to be specified)

Total

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

10 : Investment - other

(Amount - Rs.)

Current Year

Previous Year

1. In Government Securities

2. Other approved Securities

3. Shares

4. Debentures and Bonds

5. Subsidiaries and Joint Ventures

6. Others (to be specified)

Total

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

11 : Current Assets, Loans, Advances etc

(Amount - Rs.)

Current Year

Previous Year

A.Current Assets:

1.Inventories:

(a) Stores and

Spares

(b) Loose

Tools

(c)

Stock-in-trade

(i) Finished

Goods

(ii)

Work-in-progress

(iii) Raw

Materials

2.Sundry Debtors:

(a) Debts

Outstanding for a period exceeding six months

(b) Others

3.Cash balances in hand(including cheques/drafts and imprest

1.Bank Balances:

(a)With

Scheduled Banks:

-On Current

Accounts-On Deposit Accounts (includes margin money)-On

Savings Accounts

(b)With

non-Scheduled Banks:

-On Current

Accounts-On Deposit Accounts-On Savings Accounts

5.Post Office-Savings Account

Total(A)

B.Loans, Advances and other

Assets1.Loans:

(a)

Staff(b) Other Entities engaged in activities/objectives

similar to that of the Entity(c) Other (Specify)

2.Advances and

other amounts recoverable in cash or in kind or for value to be received:

(a)

On Capital Account(b) Prepayments(c) Others

3.Income

Accrued:

(a)

On Investments from Earmarked/Endowment Funds(b) On

Investments ? Others(c) On Loans and Advances(d)

Others (includes income due unrealised ? Rs...)

4.Claims

Receivable

Total(B)

Total(A+B)

Internal Financial Adviser

Secretary

Member (Finance)

Chairman

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